

SENATE No. 264

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing protections for consumers interacting with artificial intelligence chatbots.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>11/18/2025</i>

SENATE No. 264

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 264) of Mark C. Montigny for legislation to protect consumers interacting with artificial intelligence chatbots. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing protections for consumers interacting with artificial intelligence chatbots.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The General Laws are hereby amended by inserting after chapter 93L the following
2 chapter:-

3 CHAPTER 93M

4 USE OF CHATBOTS BY COMMERCIAL ENTITIES

5 Section 1. Definitions

6 As used in this chapter, the following words shall, unless the context clearly requires
7 otherwise, have the following meanings:-

8 "Chatbot", an automated program designed to simulate conversation with human users
9 whether through the use of generative artificial intelligence or other similar technology. Such a
10 program may use audio, visual, or textual methods, or a combination thereof, to communicate.

11 Section 2. Clear disclosure of chatbots

12 Any commercial entity deploying a chatbot shall clearly and conspicuously disclose to
13 the person with whom the chatbot interacts that the person is interacting with a chatbot and not a
14 human.

15 Section 3. Representations made by chatbots

16 Interactions with, including but not limited to any information or representations
17 provided by, a chatbot deployed by a commercial entity shall have the same legal force and
18 effect as interactions with a person employed by, or acting as an agent of, the commercial entity.

19 Use of a disclaimer shall not constitute a defense under this chapter, chapter 93A, or any other
20 cause of action under the laws of the commonwealth.

21 Section 4. Enforcement

22 In addition to any other remedies that may be available, a violation of this chapter shall
23 be deemed to be an unfair method of competition and an unfair or deceptive act or practice in the
24 conduct of trade or commerce in violation of section 2 of chapter 93A